

24CV02865 Guillet v. Ledson—Tentative ruling below; no appearances are necessary if the parties accept the tentative ruling.

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TENTATIVE RULING AS TO 24CV02865, GUILLET v. LEDSON

No appearances are necessary if the parties accept the tentative ruling. If the tentative ruling is contested, the party must call the Judicial Assistant by 4pm on Thursday, September 3rd, to request to appear for oral argument.

The plaintiffs and cross-defendants in this matter are two homeowners, Edward Guillet and Dana Andrade ("Plaintiffs"). The defendants and cross-complainants are Plaintiffs' homeowners association and the developer of the housing estate ("Defendants"). The dispute concerns Defendants' objections to Plaintiffs' extensive remodel of their backyard, including a hedge of thuja trees. A bench trial commenced on September 12, 2025, and concluded on September 30. The Court issued a final Statement of Decision on March 24, 2026, and a final judgment on April 24, 2026. The matter is presently on appeal (First Dist. COA case no. A177072).

This matter comes on calendar for hearing on a quartet of motions related to attorney's fees. Plaintiffs and Defendants both argue that as the prevailing parties in the litigation they are entitled to fees and costs pursuant to Civ. Code § 1717 and the attorney-fee provision of the housing estate's Covenants, Conditions & Restrictions ("CC&Rs"). Plaintiffs and Defendants also both argue that the other party's memorandum of costs should be stricken. Specifically:

1. On June 8, 2026, Defendants moved to strike or tax Plaintiffs' memorandum of costs, which was filed on May 22. ("Defendants' strike motion.")
2. On July 2, Defendants moved for fees and costs in the amount of \$291,601.90. ("Defendants' fee motion.")
3. On July 5, Plaintiffs moved to strike Defendants' memorandum of costs, which was filed on May 21. ("Plaintiffs' strike motion.")
4. On July 6, Plaintiffs moved for fees and costs in the amount of \$1,444,762.00. ("Plaintiffs' fee motion.") In a reply brief in that motion, Plaintiffs increased the fee request to \$1,534,073.50, to include work done on the motion.

All four motions revolve around the issue of which party was "the party prevailing on the contract" as contemplated by Civ. Code § 1717. For the reasons explained below, the Court finds that Plaintiffs were the prevailing party.

Accordingly, Defendants' fee motion is DENIED. Defendants' strike motion is GRANTED IN PART AND DENIED IN PART. Plaintiffs' strike motion is GRANTED. Plaintiffs' fee motion is GRANTED with a modification of the requested amounts. Plaintiff is awarded fees and costs in the total amount of \$877,371.95, consisting of \$828,399.69 in fees and \$48,972.26 in costs.

Prevailing party

In its Final Statement of Decision issued on March 24, 2026 ("SOD"), the Court found that Plaintiffs had breached the CC&Rs in several ways: they made changes without submitting plans to Defendants, and their "backyard structures encroach into the setback area." (SOD at pp. 8, 11.) However, the Court also found that Defendant could not enforce those CC&R provisions because Plaintiffs had proved the affirmative defense of laches; that is, that Defendants waited so long before seeking to enforce the provisions that enforcement would be inequitable. (Id. at pp. 12-13.) Therefore, the Court did not accede to Defendants' request for an order of specific performance of the CC&Rs.

However, the Court held that Defendants could enforce a CC&R provision requiring regular pruning of landscaping, including the limitation of "hedges not in the front yard" to a height of no more than 72 inches. (SOD at pp. 11-12.) The Court did not apply the laches principle to this provision of the CC&Rs because the requirement is an ongoing, one that by its nature can be enforced at any time. (Id. at p. 12 ["landscaping by definition will continue to grow and need attention"].)

Both parties argue that they are prevailing parties. Plaintiffs argue that they prevailed because the judgment required them to take no action other than to keep their thuja hedge pruned back to 72 inches. Defendants argue that they prevailed because the Court found that Plaintiffs were in breach of the CC&Rs, despite the fact that the Court also found that there was no remedy available for the breach. The Court agrees with Plaintiffs.

Governing law

In any action on a contract that specifically provides for attorney fees to be awarded to the prevailing party, the party who is determined to be the party prevailing on the contract shall be entitled to reasonable attorney fees. (Civ. Code § 1717(a).) The prevailing party is the one who, as determined by the court, "recovered a greater relief in the action on the contract." (Civ. Code § 1717(b).) Where the results of the litigation are mixed – for example, where the plaintiff prevails on some contract claims but not others – the court has discretion to determine if there was a prevailing party, and if so which one. (*Blue Mountain Enterprises v. Owen* (2022) 74 Cal.App.5th 537, 558.) A trial court's fact-based decision that a litigant is a prevailing party for purposes of Civ. Code § 1717 is reviewed for abuse of discretion. (*Burkhalter Kessler Clement & George LLP v. Hamilton* (2018) 19 Cal.App.5th 38, 43.)

"[I]n deciding whether there is a 'party prevailing on the contract,' the trial court is to compare the relief awarded on the contract claim or claims with the parties' demands on those same claims and their litigation objectives as disclosed by the pleadings, trial briefs, opening statements, and similar sources. The prevailing party determination is to be made only upon final resolution of the contract claims and only by 'a comparison of the extent to which each party ha[s] succeeded and failed to succeed in its contentions.'" (*Hsu v. Abbata* (1995) 9 Cal.4th 863, 876, citing *Bank of Idaho v. Pine Avenue Associates* (1982) 137 Cal.App.3d 4, 15.) In determining litigation success, "courts should respect substance rather than form, and to this extent should be guided by 'equitable considerations.' For example, a party who is denied direct relief on a claim may nonetheless be found to be a prevailing party if it is clear that the party has otherwise achieved its main litigation objective." (*Hsu, supra*, at p. 877.) "[T]he fact that a party's recovery in an action under a contract is less than the amount he prayed for does not make his adversary the prevailing party within the meaning of Civ. Code, §1717." (*Buck v. Barb* (1983) 147 Cal.App.3d 920, 926.)

Plaintiffs were the prevailing party because they achieved their litigation objectives and Defendants did not.

The authorities cited above make it clear that the Court has the discretion to determine which party was "prevailing," as contemplated by Civ. Code § 1717, based on an analysis of which has achieved its main litigation objective. As discussed

next, the Court finds that Plaintiffs have achieved their main litigation objective of being allowed to retain all of the modifications to their property in place, including the thuja hedge, subject only to the proviso that they keep the hedge pruned to a maximum height of six feet. The Court finds that Defendants' main litigation objective was to compel Plaintiffs to remove all of the modifications, and that they did not achieve it.

Plaintiffs achieved their litigation objective.

The operative Complaint, filed by Plaintiffs on May 21, 2024, states that "Plaintiffs' litigation objective is to obtain a determination regarding whether Defendants recent repudiation of the Committee's 2019 approval and delayed enforcement of the setback requirement in the CC&Rs are legal." (Complaint at ¶ 43, p. 12.) The complaint goes on to allege a single cause of action for declaratory relief, wherein Plaintiffs seek a judicial determination of (in summary):

Whether Defendants had issued final approval of Plaintiffs' proposed modifications to their property;

Whether Plaintiffs were entitled to an exception to certain CC&R requirements due to the extent of their expenditure on the modifications;

Whether the CC&Rs afford Defendants the right "to move the row of hedges and remove all other backyard renovations and enhancements that currently exist"; and

Whether Defendants' demand that Plaintiff move the hedges and remove an extensive list of renovations is barred by either the doctrine of laches or the doctrine of unclean hands.

(Complaint at ¶ 45, pp. 12-13.)

The Court infers from these passages that Plaintiffs' objective in this litigation was to obtain a judicial declaration that Defendants did not have the right to compel them to move their hedges and currently existing backyard renovation, and that, even if the renovations violated any provisions of the CC&Rs, Defendants was barred from enforcing those provisions under either of two explicitly enumerated equitable defenses, laches and unclean hands. Plaintiff achieved that objective. That is precisely what the Court declared, with the single exception that the Court recognized that the laches doctrine does not apply to requirements, such as regular landscape maintenance, that by their nature can be enforced at any time.

Defendants failed to achieve their litigation objective.

Defendants filed their operative First Amended Cross-Complaint ("FAXC") on April 21, 2025. It alleges four causes of action:

1. Breach of contract: that Plaintiffs breached the CC&Rs in numerous ways in the course of implementing their backyard remodel;
2. Code violation: that Plaintiffs' remodel violated several provisions of the City of Sonoma Code;
3. That Plaintiffs' CC&R and code violations constitute a public nuisance; and
4. For declaratory relief "as to the terms and application of the CC&R's."

(FAXC at pp. 3-5.) The FAXC prays for an order of “specific performance of the terms of the CC&Rs and damages for [Plaintiffs] breaches,” and for “abatement of the on-going public nuisance created and maintained by [Plaintiffs].” (Id. at pp. 5-6.) No order of specific performance was issued, and the Court dismissed Defendants’ public nuisance cause of action with the comment that “Defendants were unable to supply the Court with any authority supporting the position that a violation of the CC&Rs creates a per se public nuisance.” (SOD at p. 4.)

Notwithstanding that outcome, Defendants argue several times that they prevailed on their contract cause of action because “Plaintiff prevailed only on an ancillary equitable defense [i.e. laches] and had no success whatsoever in terms of applicability or interpretation of the provisions of the CC&Rs.” (Plaintiffs’ fee motion, Opposition at p. 1; Defendants’ fee motion, Reply at p. 2.) Defendants’ point, as argued in their reply brief, is that because the ruling on the contract was based on the laches affirmative defense rather than the substantive content of the contract, Plaintiffs did not prevail “on the contract” as required by CCP § 1717. But Defendants offer no authority suggesting that a ruling that a contract is unenforceable for an “ancillary” reason is necessarily not “on the contract.” To the contrary, “California courts liberally construe the term ‘on a contract’ as used within section 1717. [Citation.] As long as the action ‘involve[s]’ a contract it is ‘on the contract’ within the meaning of Section 1717.” (Dell Merk, Inc. v. Franzia (2005) 132 Cal.App.4th 443, 455.) The fact that the contract was held unenforceable under the laches doctrine is of no moment: “a party is entitled to attorney fees under section 1717 ‘even when the party prevails on grounds that the contract is . . . unenforceable’” (Hsu, supra, 9 Cal.4th at p. 870, quoting Bovard v. American Horse Enterprises, Inc. (1988) 201 Cal.App.3d 832, 842.)

More importantly, Defendants seem to suggest that their litigation objective was nothing more than a bare ruling by the Court that Plaintiffs had breached the CC&Rs, and that an accompanying court order to actually remedy the breach might have been nice too but was never the goal. That is consistent with Defendants’ declaratory relief cause of action, but markedly inconsistent with their prayer for specific performance of the CC&Rs. Defendants alleged that Plaintiffs’ breach of the CC&Rs consisted of, among other things, “failure to abide by the setbacks set forth in the CC&Rs, failure to limit hedges in the setback to the three-foot height allowed by the CC&Rs, [and] failure to bring their property into compliance with the CC&Rs when advised of the violations.” (FAXC at ¶ 12, pp. 3-4.) The only reasonable interpretation of Defendants’ subsequent prayer for specific performance (id. at pp. 5-6) is that their objective was a court order compelling Plaintiffs to abide by the setbacks, limit the height of their hedges to three feet, and bring their property into compliance with every aspect of the CC&Rs Defendants have brought to their attention.

Defendants’ only success was in obtaining an order that Plaintiffs keep their hedge pruned to six feet in height. While this is not a complete failure to achieve their request for specific performance of the CC&Rs, it is complete enough to persuade the Court to exercise its discretion and determine that Defendants did not come close enough to achieving their goals to be regarded as a prevailing party.

In summary, Plaintiffs were the prevailing party in this litigation. Since the contract at issue – the CC&Rs – contained an attorney-fee clause, Plaintiffs are entitled to recover their fees and costs. (Civ. Code § 1717.)

Costs

Each party argues that the other party’s memorandum of costs must be stricken because the other party did not prevail. As noted above, the Court finds that Plaintiffs prevailed and Defendants did not. Accordingly, Plaintiffs’ motion to strike Defendants’ memorandum of costs is granted.

Defendants’ motion to strike Plaintiffs’ memorandum of costs is denied. However, Defendant also moved in the alternative to tax certain elements of Plaintiffs’ costs. For the reasons set forth below, that motion is granted in part and denied in part.

Mediation expenses

Defendants object to Plaintiffs recovering \$7,250.36 in fees and travel expenses for a mediation that took place prior to the filing of the complaint, pointing out that mediation expenses are not listed as a recoverable cost under CCP § 1033.5(a).

While that is true, neither are they listed as a prohibited cost under CCP § 1033.5(b).

Plaintiffs cite to *Berkeley Cement, Inc. v. Regents of Univ. of California* (2019) 30 Cal.App.4th 1133, 1143 for the proposition that “mediation costs indeed may be reasonably necessary and recoverable as costs.” (Defendants’ strike motion, Opposition at p. 7.) While the mediation in *Berkeley Cement* was voluntary rather than court-ordered, the opinion does not say whether it occurred before or after litigation commenced. However, the cost of pre-litigation alternative dispute resolution can be recoverable under some circumstances. (See, e.g., *Grossman v. Park Fort Washington Assn.* (2012) 212 Cal.App.4th 1128, 1134 [“party does not act unreasonably when it spends money on attorney fees and costs during prelitigation ADR”].)

Crucially, though, “[w]here costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.” (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29, citing *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 132.) Plaintiffs, who are claiming the costs, have made no attempt to show that they were reasonable. In particular, they have not suggested that there was any reason to believe, several months before the first complaint was filed, that the case was amenable to resolution by mediation. It is far from self-evident that it was.

Because Plaintiffs have not carried their burden of showing that the mediation charges were reasonable, Defendants’ motion to tax \$7,250.36 in mediation-related expenses is granted.

Expert witness fees

The CCP § 998 offer

Plaintiffs issued an offer to compromise pursuant to CCP § 998 (“998 offer”) stating that in exchange for Defendants dismissing their cross-complaint, “Plaintiff would agree to alter the location of the existing air conditioning unit, pergola, and fire pit; remove two cedar trees; and dismiss all [their claims against Defendants] with prejudice.” (Defendants’ strike motion, MPA at p. 6.) Defendants did not accept. Plaintiffs now argue that they obtained a better outcome than the one they proposed in the 998 offer, and accordingly seek to recover post-offer expert witness fees.

Defendants respond that Plaintiffs “didn’t beat their 998” because their recovery was non-monetary. Defendants argue that “when an offer contains non-monetary terms, a court should not undertake extraordinary efforts to attempt to determine whether the judgment is more favorable and should instead ‘conclude that the offer is not sufficiently specific or certain to determine its value and deny cost shifting.’” (Defendants’ strike motion, MPA at p. 6, citing *Ayers v. FCA US, LLC* (2024) 99 Cal.App.5th 1280, 1306 for the internally quoted passage.)

That argument is inartfully worded. As written, it suggests that whenever a 998 offer contains non-monetary terms, any effort a court might choose to make to determine if the judgment is more favorable will ipso facto involve “extraordinary efforts,” and therefore the court should never make such efforts, but should instead simply hold that CCP § 998 cost shifting is inapplicable. But that is not what *Ayers* says. It says that if a particular 998 offer features nonmonetary terms that make it “exceedingly difficult or impossible to determine the value of the offer to the plaintiff,” then, and only then, the court should conclude that the offer was not sufficiently sufficient or specific. *Ayers* clearly contemplates the possibility that a 998 offer’s non-monetary terms might not make it difficult or impossible to determine the value of the offer to the plaintiff.

That is the situation here. The Court does not know what it would have cost Plaintiffs to move an air conditioning condenser, a pergola, and a fire pit, and to remove two cedar trees, but the Court is confident that whatever the figure is, it is greater than what it will cost Plaintiffs to maintain their thuja hedge at six feet high, which is all the judgment requires them to do. Therefore, the Court holds that the judgment, translated to monetary terms, provides greater relief to Plaintiffs than they would have received if Defendant had accepted the 998 offer.

Walter Ricci

Defendants object to Plaintiffs' recovery of expert witness fees paid to real estate appraiser Walter Ricci because the court granted a motion in limine to exclude his testimony at trial. Defendants argue that his testimony, which was simply that "a smaller back yard is less valuable than a larger backyard . . . would not have been probative of any disputed issue at trial." Therefore, Defendants submit, they should not have to pay Plaintiffs' costs of acquiring this non-probative testimony. Plaintiffs respond that CCP § 998 "simply entitles a party, without reservation, to be awarded 'post-offer costs of the service of expert witnesses . . .'" (Defendants' strike motion, Opposition at p. 6.)

It is true that "recovery of deposition costs does not depend on whether the deponent ultimately testifies at trial." (Chaaban v. Wet Seal, Inc. (2012) 203 Cal.App.4th 49, 57.) However, Plaintiffs' "without reservation" comment goes too far. There is indeed a reservation: the fees spent on the non-testifying expert must be also be "reasonably necessary in either, or both, preparation for trial . . . , or during trial" (CCP § 998(c)(1).) The "reasonably necessary" standard is an important safeguard, as it prevents parties from artificially running up their adversaries' costs by hiring experts whose testimony they have no intention of using. Plaintiffs have made no attempt to explain why they concluded that Mr. Ricci's testimony was necessary.

Since the Court has no basis for concluding that the fees paid to Mr. Ricci were reasonably necessary, Plaintiffs' costs are taxed \$14,568.75, the amount of those fees. (Plaintiffs' Memorandum of Costs at p. 3.) On its own motion, the Court will also tax the expenses of \$741.70 associated with Mr. Ricci's deposition. (Id. at p. 4.)

Deposition-related travel

Defendants argue that Plaintiffs are not entitled to reimbursement of travel expenses for two depositions of Plaintiff Guillet that were conducted on Zoom. Plaintiffs respond that they were entitled to conclude that in-person contact between Mr. Guillet and his counsel at the deposition was necessary even if the attorney conducting the deposition did so via Zoom. The Court agrees with Plaintiffs. Defendants' choice to conduct the deposition remotely did not oblige Plaintiffs to make the same choice with respect to defending it.

However, the Court is concerned about the amounts of the travel expenses. Plaintiffs seek \$2,258.38 for travel expense for Mr. Guillet's August 7, 2025, deposition, and \$673.35 for expenses for his September 9, 2025, deposition. Defendants point out that these are two significantly different amounts for what appear to be two identical journeys and suggest that this calls into question whether the larger figure is reasonable. (Defendants' strike motion, MPOA at pp. 8-9.) Plaintiffs respond only that "the requirement that claimed costs be reasonable does not require that costs be the lowest possible in order to be recoverable." (Defendants' strike motion, Opposition at p. 7.) True, but reasonableness is still a requirement, and while the statute does not require the lowest possible costs, neither does it authorize the highest possible ones. It is not obvious how expenses in excess of \$2,000 are reasonable for travel between San Diego, where Plaintiffs' attorney practices, and Sonoma, where Mr. Guillet lives. The Court will award costs of \$673.35 for travel for each of the depositions and will therefore tax the costs in the amount of \$1,585.03.

Conclusion as to Costs

Plaintiff has requested total costs in the amount of \$73,118.10. For the reasons set forth above, the costs requested by Plaintiff are taxed in the amount of \$24,185.84. Thus, costs are awarded in the amount of \$48,972.26.

Attorney fees

As discussed above, Plaintiff is the prevailing party in a lawsuit on a contract that specifically provides for attorney fees for the prevailing party and is therefore entitled to fees. (Civ. Code § 1717(a).) Plaintiffs seek \$1,534,073.50 in attorney fees, which includes all of the attorney time devoted to the instant motions. (Plaintiffs' fee motion, Reply at p. 11.)

Governing law

The standard for calculating attorney fee awards under California law “ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. [Citation.] Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary.” (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.

“[T]he trial court has broad authority to determine the amount of a reasonable fee.” (PLCM Group, supra, 22 Cal.4th at p. 1095.) “The determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court. [Citation.] The experienced trial judge is the best judge of the value of professional services rendered in his or her court.” (Rey v. Madera Unified School Dist. (2012) 203 Cal.App.4th 1223, 1240.)

Reasonableness of time claimed

Defendants object to certain aspects of Plaintiffs’ fee claim. First, Defendants point out that Plaintiffs “prevailed solely on an affirmative defense that was neither the focus of discovery nor trial.” (Plaintiffs’ fee motion, Opposition at p. 9.) The Court cannot help noticing that this is a concession that Plaintiffs prevailed, but Defendants’ point appears to be that since the laches theory won the day, Plaintiffs are only entitled to attorney fees for time spent developing that theory. Defendants cite *Wallace v. Consumers Cooperative of Berkeley, Inc.* (1985) 170 Cal.App.3d 836, 846-847 for the proposition that “such partial success is a factor to be considered in determining the amount of the fee awarded,” but nothing about that rule suggests that a party cannot be awarded attorney fees under Civ. Code § 1717 for time spent preparing to argue legal theories that do not turn out, in hindsight, to be the winning one.

Second, Defendants argue that “fees sought include duplicative fees for the services of two attorneys,” and that the fee award should be reduced to cover the fees of only one attorney. Defendants note a number of occasions when Plaintiffs were represented by both senior partner Antony Nash and associate Paige Adaskaveg, and suggest that these were “instances of duplication.” (Plaintiffs’ fee motion, Opposition at p. 10.) Defendants aver that Ms. Adaskaveg “is new to trial work and this case presented a training opportunity for her,” and suggest that Ms. Adaskaveg may have “provided document handling or note taking services at trial” that could have been provided more cheaply by a paralegal. (Ibid.) However, Defendants provide no evidence about what exactly Ms. Adaskaveg did at trial, or about how much trial experience she has had. Having first- and second-chair attorneys at trial is a common practice, as is attorneys working in pairs. The Court declines Defendants’ invitation to second-guess how essential Ms. Adaskaveg’s contribution to the litigation was.

The attorney hours claimed by Plaintiffs are well-documented and reasonable. The Court accepts them as accurate.

Billing rates

Plaintiffs’ counsel Antony Nash has provided extensive documentation showing that his billing rate of between \$1,020 and \$1,295 per hour, and Ms. Adaskaveg’s of \$885 to \$1,100 per hour, are in line with those charged by other AmLaw 100 firms in San Francisco. (Plaintiffs’ fee motion, Nash Dec at ¶¶ 32, 36 and Exhs. 2-6.) That information does not apply to Plaintiffs’ fee motion. “The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group, supra, 22 Cal.4th at p. 1095, emphasis supplied.) “The general rule is ‘[t]he relevant “community” is that where the court is located,’ unless the party claiming fees demonstrates that hiring local counsel was impracticable or local counsel was not available.” (Marshall v. Webster (2020) 54 Cal.App.5th 275, 285-286; see also *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 72 [“fee awards generally should be based on reasonable local hourly rates”].) Here, the court is located in Sonoma County. An exception applies when the party seeking fees demonstrates an inability to hire local counsel (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 398-399), but Plaintiffs have not suggested that they were unable to hire Sonoma County lawyers who charge Sonoma County rates.

Defendants propose that the Court use a lodestar billing rate of \$625/hour for Mr. Nash, that being what a highly experienced senior partner in Defendants' counsel's Santa Rosa firm bills. (Plaintiffs' fee motion, Opposition at pp. 11-12.) The Court finds this figure to be reasonable and in line with the fees it customarily awards to senior partners with more than 15 years' experience.

Unfortunately, Plaintiffs do not provide a summary of the total number of hours or dollars billed in this matter broken down by their counsel's firm's individual partners, associates, and paralegals. Instead, Plaintiffs provide approximately 150 pages of billing records containing individual entries for at least 10 different timekeepers, a month-by-month summary, and a single grand total representing the sum of all the billing records. None of those facilitate the calculation of fees at appropriate Sonoma County rates. The necessary information is all there: one could, in theory, go through all 150 pages, add up the time for each individual timekeeper, and multiply each sum by an hourly rate appropriate to an analogous timekeeper in Sonoma County. The Court does not wish to do that. Instead, the Court will apply a 54% multiplier to the entire amount of attorney fees request by Plaintiffs, that being the ratio of the \$625/hour rate proposed by Defendants for highly experienced partners, and \$1,175.50/hour, the midpoint of the range of billing rates Mr. Nash has reported. If Plaintiffs object to this procedure, the Court invites them to submit a supplemental declaration listing the total number of hours each individual attorney or staff member worked on the case and each such person's level of skill and experience.

Based on the formula described above, attorney fees are awarded in the amount \$828,399.69.

Conclusion as to Fees

Fees are awarded to Plaintiffs in the amount of \$828,399.69.

Final Ruling

Accordingly, Defendants' fee motion is DENIED. Defendants' strike motion is GRANTED IN PART AND DENIED IN PART. Plaintiffs' strike motion is GRANTED. Plaintiffs' fee motion is GRANTED with a modification of the requested amounts.

Plaintiff is awarded fees and costs in the total amount of \$877,371.95, consisting of \$828,399.69 in fees and \$48,972.26 in costs.

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